

Biometric Consent & Data Policy — Counsel Brief

⚠ **NOT LEGAL ADVICE.** An inventor-prepared brief on the biometric-privacy policy and consent flow counsel should produce before any voice or facial data is processed. Triggered by Buddy Chat voice features and any step-up/liveness auth. Prepared 2026-09-14. See [DATA-COLLECTION-BRIEF-FOR-COUNSEL](#) , [BUDDY-CHAT-LEGAL-BRIEF](#) , [BIOMETRIC-AND-STEP-UP-AUTH-COUNSEL-NOTE](#) .

Why this matters

Voice recordings and any faceprint/liveness data can be **biometric identifiers** under Illinois **BIPA**, Texas **CUBI**, and Washington's biometric law. BIPA in particular carries a **private right of action** and statutory damages, and requires a **written, publicly available policy, informed written consent before collection**, and a **retention/destruction schedule** — non-compliance is a leading source of privacy class actions.

What counsel should produce

- **Public biometric privacy policy** — what biometric data (if any) is collected, the specific purpose, the **retention schedule**, and the **destruction timeline** (e.g. destroy when the purpose is satisfied or within a set period).
- **Standalone written consent** — separate, affirmative, pre-collection consent (not bundled into the general Privacy Policy), logged to the consent ledger with timestamp + version.
- **No-sale/no-disclosure commitment** and vendor flow-downs if any processor touches the data.
- **Design confirmation** — whether voice is transcribed-and-discarded vs. stored; whether any faceprint is ever created; if the feature can avoid creating a biometric identifier altogether, prefer that (the safest posture).

Decisions for counsel

Whether the current/planned feature set actually creates a biometric identifier (if not, say so plainly and gate it so it can't); retention period; which states are in scope; whether to geo-gate the feature away from the highest-risk states until the policy and consent are live. Gate: the voice/biometric feature ships **OFF** until this is cleared.

Not legal advice. Related: [DATA-PROCESSING-AND-SUBPROCESSOR-BRIEF](#) , [PRIVACY-POLICY](#) , [BUDDY-CHAT-LEGAL-BRIEF](#) .